

The (Sambalpur Public) Ferries Rules, 1950

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State of Odisha - Act

The (Sambalpur Public) Ferries Rules, 1950

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The (Sambalpur Public) Ferries Rules, 1950

Rule THE-SAMBALPUR-PUBLIC-FERRIES-RULES-1950 of 1950

Published on 1 November 1950

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The (Sambalpur Public) Ferries Rules, 1950

Published vide Notification Orissa Gazette Part 3/10.11.1950

Notification dated 1st November, 1950. - In exercise of the powers conferred on me by Section 12 of the Northern India Ferries Act, 1878 (XVII of 1878) and in supersession of the existing rules, I.B. Sivaraman, Esqr., I.C.S., Commissioner, Northern Division, Orissa do hereby make the following rules for the control and management of the public ferries in the district of Sambalpur except the Sub-divisions of Deogarh, Kuchinda and Rairakhol, other than the ferry over the Mahanadi river at Sambalpur, rules for the same having been previously approved by the State Government.

1.

Fixed rates of tolls shall be collected for each kind of traffic such as loaded carts, empty carts, cattle, motor cars, lorries and passengers, etc., in accordance with the Schedule of rates sanctioned by Government which is appended to these rules. The tolls shall be paid before crossing the river or the Nalas. The rates shall continue from 1st April till the end of

31st March.

For the purpose of collecting tolls tickets shall not ordinarily be issued by the licensee but the licensee shall give or cause to be given receipts to persons, using the ferry for all sums received from them in payment of tolls, if demanded.

2.

(a)

During the ferry season when the water in the river is below 18ft., traffic shall be started at 7 a. m. and will be closed at 6 p. m. of each day.

(b)

During the heavy floods (above 18 ft.) the boats shall leave the bank at 9 a.m. and shall cease plying punctually at 5 p.m.

(c)

When the current of the wind or the state of weather is such as to render the crossing unsafe and endanger the life of the passengers, the ferry boats shall not be plied.

Passengers and goods not arriving in proper time shall have to wait for the next trip.

3.

The lessee shall not work the ferry or allow it to be worked between sunset and sunrise when the river is in high flood. As long as the stream across which the ferry plies is more than 3 ft. deep at any point of the crossing the lessee shall keep sufficient number of ferrymen, and also one boat present within 100 yds. of the ferry at all hours of the day or night.

4.

All boats shall have load lines marked by the District Engineer in charge of the ferry in red lines showing the maximum loads with which the boats can be safely loaded and in no case passengers or goods shall be taken on board beyond the fixed limits. Capacity of all boats showing the maximum number of passengers and quantity of goods that can be taken on each boat at a time shall be noted separately on each boat.

5.

Heavy goods, cattle and inflammable materials, viz., petrol, kerosene, etc., shall be transported in separate boats or in separate trips of the boats and not in the same boats carrying passengers. Owners of cattle, however, may accompany their cattle in the boat.

6.

Government mails shall be ferried in the day time at timer intimated by the Postal Department.

No passengers or goods shall be allowed to cross in the same boats with the Government mails and runners.

The lessee shall cause carts carrying the mails and the drivers of such carts and Dak runners to be conveyed across the ferry with the ferry with the least possible delay.

7.

No person who is found disorderly on account of intoxication shall be allowed to cross the river by boat.

8.

The following shall be exempted from payment of tolls :

(a)

All Government servants travelling on duty, also their attendants and camp followers and all animals and vehicles carrying their luggage and camp equipment.

(b)

All members of the District Board and the members of the Local Boards and all paid servants of these bodies when travelling on duty.

(c)

Carts carrying the mails and the drivers of such carts and Dak runners.

(d)

Village Kotwars in the discharge of their duties, accused persons in custody and witnesses in criminal cases challaned by the Police.

(e)

The following classes of persons when going to or returning from their daily Works :

(i)

Cultivators with their cattle and implements

(ii)

Day labourers;

(iii)

Children going to or returning from school.

In case of (a) and (b) free passes shall be provided from Heads of Officer, in case of (d) they are required to sign in a book kept for the purpose.

(f)

Government property of any description on production of a certificate from the Head of Office sending them.

9.

The District Engineer or the lessee shall at once report the nearest police-station any accident occurring within the limits of the ferry by which death or injury amounting to grievous hurt is caused or there is any likelihood of the breach of the peace within these limits.

10.

The number of crew for each boat shall be fixed by the District Magistrate.

11.

The lessee shall be bound -

(1)

(a)

to Provide such number of boats and of such description as the Magistrate of the district may require;

(b)

to employ such a crew in and to provide such equipment for each such boat as the Magistrate of the district may direct.

(2)

The lessee shall not carry at a single trip in any such boat-

(a)

any number of passengers, animals or vehicles; or

(b)

any bulk or other weight of freight in excess of the number of bulk or weight, as the case may be, which such boat is authorised by the Magistrate of the District to carry.

12.

The lessee shall maintain a register showing-

(a)

the registered number of the boats;

(b)

the names and addresses of passengers ferried across the river in the boat;

(c)

the nature and the description of the luggage belonging to the passengers carried in the boat;

(d)

the time of departure from one bank and arrival on the other bank; and

(e)

the number and names of the crews employed on each boat.

The entries in the register relating to each trip shall bear a separate serial number.

13.

(a)

The lessee shall report to the officer-in-charge of the police-station the arrival at the ferry of any person who is known or reasonably suspected to be an escaped convict or proclaimed offender and permit no such person to cross the ferry.

(b)

The lessee shall, when required by the District Magistrate to do so, but not otherwise, furnish all information in his power regarding suspicious persons or classes of persons who may have been or may Come to be ferried over.

(c)

The lessee shall be bound to furnish returns of traffic as may from time to time be called for by the District Magistrate and for this purpose he shall keep a register of traffic in the form to be prescribed by the District Magistrate.

14.

All goods carried on the ferry shall be firmly fixed to the boats or packed in hold so that there may not be chance of the goods shifting too much in transit and upsetting the balance of the boat.

15.

Sitting or standing places for passengers shall be provided by the ferrymen and no person shall sit or stand on the ferry except at the places so prescribed.

16.

Passengers shall alight from the boats without objection when requested by the lessee in case boat is found to be overloaded.

17.

Anybody desiring to make any complaint regarding the working of the ferry, such as delay in carrying goods or carts, etc., or misbehaviour on the part of the lessee or the boatman, shall address to the Chairman of the District Board or the Executive Engineer of the P.W.D., as the case may be or the Deputy Commissioner, Sambalpur.

18.

The District Engineer or the Executive Engineer of the P.W.D., as the case may be, shall inspect the ferry boats periodically and at shorter intervals during the flood season and shall certify that the boats are in fit state to ply.

19.

The District Magistrate may at any time require the lessee to repair or replace any boat which he considers to be in a dangerous state of disrepair and the lessee shall thereupon be bound to repair or replace it as desired.

20.

The Officer in charge of the nearest police-station shall report at once to the District Magistrate any instance of mismanagement of the ferry, the insecurity of the boats, or any other defect in the working of the ferry which may come to his notice.

21.

The lessee shall provide for life saving arrangement during the heavy floods (when the water level is more than 18 ft.) by keeping as many bundles of piths or life buoys equal to the number of passengers to be carried over according to the capacity of the boat as certified by the District Engineer, or the Executive Engineer of the P.W.D. as the case may be. Each pith bundle or life buoy shall be of the same size as can conveniently keep an adult afloat and this shall be certified by the District Engineer or the Executive Engineer of the P.W.D.

22.

The lessee or a District Board or Local Board ferry on receipt of intimation from the District Magistrate and the lessee of a P.W.D. ferry on receipt of intimation from the Executive Engineer, shall at once remove any boatman or servant employed in working of the ferry whom the District Magistrate or the Executive Engineer, as the case may be, may declare to be unfit to act as such.

23.

No ferryman or servant of the lessee shall demand any fee for services rendered in conveying good or vehicle into or from a ferry boat or in loading or unloading goods and any person contravening this rule will be liable to dismissal without prejudice to any punishment to which he is liable under Section 23 of the Act.

24.

The above rules are liable to modification in accordance with the requirements arising from time to time, any revision of the rates of tolls, however, of being subject to the sanction of the State Government.

Rates of tolls to be charged on all traffic on the public ferries

(Sanctioned in Notification No. 874-L.S.G., dated the 18th February, 1947, as amended by Notification No. 2124 L.S.G., dated the 15th March, 1950)

Schedule

Sl. No.

Description of commodities

Rates

(a) Passenger

Rs.

a.

p.

1.

On every person whether carrying a load accompanying animal
or vehicle

0

0

6

2.

On every full bag, package, basket, box, bundle and drum
weight up to 1½ mounds

0

1

0

3.

On every handload exceeding 15 seets and up to 1 mound

0

0

6

4.

On every loaded bhar weight up to 1½ mounds

0

1

0

(b) Vehicles (ordinary)

1.

Empty cart without a driver

0

4

0

2.

Tanga cart without a driver

0

6

0

3.

Palki excluding bearers

0

4

0

4.

Rickshaw excluding driver

0

4

0

5.

Bicycle and Tri-cycle excluding rider

0

1

6

(c) Vehicles (Motors)

1.

Motor car excluding driver and passengers

1

0

0

2.

Motor cycle excluding driver

0

4

0

3.

Motor cycle with side car excluding driver and passenger

0

6

0

4.

Lorry excluding driver and passengers

2

0

0

(d) Transport of materials

1.

Loads on cart-

(a)

each bag, package, bundle, box and drum of size not exceeding
20 c.ft. and weight not exceeding 2½ mounds

0

2

0

(b)

each bale, package, bundle, box and drum of size exceeding
2,c.ft. weights exceeding 2½ mounds

0

6

0

(c)

Grass, fire-wood, and other bona fide building materials,
hide, bone, lute and furniture per cart

0

10

6

2.

Tins-

(a)

Ghee and other edible oil per tin

0

2

0

(b)

Kerosene and motor spirit, lubricating oil and every 8 empty
tins and drums

0

0

6

(c)

Castor oil

0

0

6

(d)

Barrel of kerosene and motor spirit

0

6

0

3.

Kendu leaf bags

0

8

0

(a) Animals (Domestic)

1.

Elephant

4

0

0

2.

Horse excluding rider

0

4

0

3.

Camel unladen

0

4

0

4.

Camel laden

0

8

0

5.

Pony unladen

0

1

6

6.

Ponyladen

0

2

6

7.

Donkey unladen

0

0

6

8.

Donkey laden

0

1

6

9.

Bullock unladen

0

1

6

10.

Bullock laden

0

2

6

11.

Other cattle unladen

0

1

6

12.

Other cattle laden

0

2

6

13.

Goats, sheep, swine, hogs, dogs and monkeys each

0

0

6

14.

Fowls and ducks per pair

0

0

6

(f) Ferocious animals

1.

Lion, tiger, bears, wolf engaged per head

4

0

0

(g) Boats

1.

Reserved platform boat, per trip

12

0

0

2.

Special boat (big size) per trip

1

4

0

3.

Special boat (small size) per trip

0

10

0

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